

Ram Kumar v. State of U.P. and another

High Court of Judicature at Allahabad · Division Bench · 2 April 2018 · Writ-C No. 11934 of 2018 · **Writ disposed; petitioner relegated to Clause 6.5 for bill dispute.**

HEADNOTE

A consumer disputing the amount raised in Power Corporation bills was left to the remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Division Bench disposed of the writ without examining the bills on merits.

FACTUAL SUMMARY

Ram Kumar filed a writ petition in the Allahabad High Court in 2018 disputing the amount raised in electricity bills issued by the respondent Power Corporation. The State of Uttar Pradesh was also arrayed as a respondent. The petitioner sought interference with the billed amount. Counsel for the Corporation submitted that such a billing dispute could be pursued under the Supply Code rather than by writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute

HOLDING

A writ petitioner disputing the amount raised in bills of the Power Corporation may avail the remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005; the petition is disposed of leaving that remedy open. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILLED AMOUNT

The Court did not examine the bills on merits. ¶ 1